

2022 SCC OnLine All 940

In the High Court of Allahabad
(BEFORE MANOJ MISRA AND VIKAS BUDHWAR, JJ.)

KPB Metals Private Limited ... Petitioner;

Versus

State of U.P. and Others ... Respondents.

Writ - C No. - 13176 of 2022

Decided on November 2, 2022

Advocates who appeared in this case :

Counsel for Petitioner:- Mayank Kumar Agrawal, Bidhan Chandra Rai

Counsel for Respondent:- C.S.C., Pranjal Mehrotra, Rajesh Yadav

ORDER

1. We have heard Sri. Bidhan Chandra Rai for the petitioner; learned Standing Counsel for the Respondent No. 1; and Sri. Pranjal Mehrotra for Respondents 2 and 3.

2. For its plant site at Khasra no. 267 M, village Baheda, Nagina Road, Bijnore, the petitioner was sanctioned 3000 KVA load electricity connection. Thereafter, on 25.1.22, the petitioner acquired two other plots, namely plot no. 266 and 265. Pursuant thereto, by application dated 25.2.2022, the petitioner requested the Executive Engineer, Electricity Distribution Division-I, Pashchimanchal Vidyut Vitran Nigam Limited, Bijnore to allow the petitioner to use the connection provided earlier for additional plot nos. 266 and 265. This application was rejected by the impugned order dated 19.4.2022 passed by the Executive Engineer, Electricity Distribution Division-I, Pashchimanchal Vidyut Vitran Nigam Limited, Bijnore.

3. A perusal of the impugned order dated 19.4.2022 would reflect that the permission sought by the petitioner to utilize the electricity connection for additional plots was not acceptable under Clause 4.8(d) of the U.P. Electricity Supply Code, 2005 (for short 2005 Code).

4. Questioning the rejection of its application, the learned counsel for the petitioner contended that the sanction order dated 10.1.2022, sanctioning 3000 KVA load connection, is in respect of running a rolling mill at site Baheda, 10 KM, Nagina Road, Bijnore and not in respect of any specific plot; the petitioner is a Company having a composite plant located across several plots of land in a common site therefore, internal changes with regard to the usage of electricity within the same premises is permissible under Clause 4.45(c) of the 2005 Code. It has been submitted that Clause 4.8(d) is in respect of change in site of the

consumer for whom the load is sanctioned and relates to a new connection as would appear from the title of the concerned clause of 2005 Code. It has also been argued that since the connection has been accorded to the petitioner-company for running a rolling mill at a place where the petitioner-company has its works, the order impugned of the Respondent no. 3 is wholly arbitrary and unreasonable.

5. Sri. Pranjal Mehrotra, who appears for Respondents 2 and 3, has submitted that Clause 4.45 of the 2005 Code applies to a case where there are changes inside the same premises; it is not applicable to a case where the premises itself changes. In such circumstances, it was argued, the Respondent no. 3 was justified in placing reliance on the provisions of sub-clause (d) of Clause 4.8 of the 2005 Code to reject the prayer of the petitioner. He also submitted that the petitioner can always apply for a fresh connection for the new premises or he may seek disconnection of the existing connection and apply for a fresh connection in respect of the entire premises.

6. Having noticed the controversy and the rival submissions in respect thereof, before we proceed to assess the respective weight of the submissions made, it would be apposite to notice the relevant provisions of the 2005 Code which have been cited before us.

7. Clause 4.8(d) of the 2005 Code, which has been relied upon by the third respondent to reject the application of the petitioner, reads as follows:—

“4.8 New Connection where Extension of Distribution Mains or Commissioning of New Sub-Station/Enhancement of capacity of substation is required.

(a)...;

(b)...;

(c)...;

(d)(i) Change in site of the sanctioned load will not be permitted.

(ii) Change in purpose of use of power within same tariff schedule shall be permitted.

(iii) If the applicant opts for lesser load than the sanctioned load before signing of agreement, the agreement for the same shall be executed accordingly and the sanction of surrendered load shall stand forfeited.”

8. Clause 4.45(c), which has been relied by the learned counsel for the petitioner, reads as follows:—

“4.45(A) Procedure in Case of Change in Wiring and/or Apparatus or Shifting of Service Line in the Premises of the Consumer:

The consumer may apply to the licensee for any changes in their premises related to wiring/apparatus/service line, after clearing all

dues pending, if any, provided the same are not stayed by any court, subject to the following:

(a)...

(b)...

(c) In other cases, if the consumer desires to alter the wiring on his premises, or change the location of meter or other related apparatus or shift the service line on his premises notice thereof shall be sent in writing with the modified wiring diagram and other necessary details to the Licensee. The Licensee shall after due enquiry grant approval, with or without modification to the proposal, or reject the request stating reasons thereof, in writing, within 15 days."

9. The term 'premises' has been defined in sub-clause (ss) of Clause 2.2 of 2005 Code as follows:—

"2.2 In this Code, unless it is repugnant to the context:

....

(ss) "Premises" means the area/portion of the building/shed/field etc., for which, the electric connection has been applied for or sanctioned for a single consumer."

10. A conjoint reading of Clause 4.45(c) and Clause 2.2(ss) would suggest that sub-clause (c) of Clause 4.45 would apply to a case where there is change related to wiring/apparatus/service line within those premises for which connection has been accorded.

11. It is noteworthy that in the application of the petitioner for supply of energy, which is at page-81 of the paper-book, the electric connection has been applied for Khasra no. 267M, village Baheda, Nagina Road, Bijnore.

12. In such circumstances, the premises for which the connection was sanctioned would, as per the definition of 'premises' vide sub-clause (ss) of Clause 2.2 of the U.P. Electricity Supply Code, 2005, be Khasra No. 267M, village Beheda, Nagina Road, Bijnore.

13. The contention of the learned counsel for the petitioner that plot no. 265, 266 and 267M, being contiguous to each other, would fall in one premises that house the rolling mill is not acceptable for the applicability of Clause 4.45(c) of the 2005 Code because from the own application of the petitioner dated 25.2.2022, at page-96 of the paper-book, the additional two plots were obtained through an instrument which was registered on 25.1.2022 i.e, after the sanction of the electricity connection.

14. In view of the analysis above, we are satisfied that the third respondent was justified in invoking the provisions of Clause 4.8(d) of the U.P. Electricity Supply Code 2005 to reject the application of the petitioner.

15. The petition is dismissed.

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